

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Wednesday, May 27, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Wednesday May 27, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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21CV-03285	Sheila Andrews vs Steven M. Nailen, et al.
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Motion for Summary Judgment

Continued on the court's own motion to June 3, 2026, at 8:15 a.m. in Courtroom 8.

24CV-03375	Melesio Ortega vs Anthony Diaz, et al.
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Status Conference

Appearance required.

24CV-03479	Irene Delema vs City of Merced, et al.
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Motion for Summary Judgment

Defendants' motion for summary judgment is DENIED.

Plaintiff's objections to Merced Apartments LLC's evidence are SUSTAINED on the basis that the statements objected to in the declaration of Garrison lack foundation. The declaration does not show affirmatively that the declarant is competent to testify to the matters stated in her declaration. (Code. Civ. Prod. § 437c, subd. (d).)

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, *as modified* (July 11, 2001).)

“A prima facie showing is one that is sufficient to support the position of the party in question.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 851, *as modified* (July 11, 2001).)

Defendant does not make a prima facie case therefore the burden does not shift to Plaintiff show there is a triable issue of material fact.

Defendant has failed to meet their burden of production as to undisputed material facts (“UMFs”) 8, 9, 10, and 11. As the objections to the declaration of Garrison have been sustained, there is no evidence provided by Defendant that the court may consider that supports their UMFs 8, 9, 10, and 11. (See Code. Civ. Prod. § 437c, subds. (b)(1), (c).)

These facts are material as they go to ownership, possession, or control over the subject sidewalk.

“[T]he duties owed in connection with the condition of land are not invariably placed on the person [holding title] but, rather, are owed by the person in possession of the land [citations omitted] because [of the possessor's] supervisory control over the activities conducted upon, and the condition of, the land.” (*Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1157–1158.)

These elements have not been negated by Defendant's motion and therefore remain triable issues of material fact.

As the motion fails regarding ordinary premises liability, and there was no alternative motion for summary adjudication, the court does not reach Defendant's motion regarding Plaintiff's alternative premises liability theory based on Streets and Highways Code section 5610.

Accordingly, as Defendant does not make a prima facie case the motion for summary judgment is DENIED.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Case Management Conference

Appearance required.

25CV-02427

Isaac Garcia vs Jason Miller, et al.

Motion to Disqualify Plaintiff's Counsel

The motion to disqualify Plaintiff's counsel is GRANTED.

The trial court is vested with the power “[t]o control in furtherance of justice, the conduct of its ministerial officers.” That power includes the disqualifying of an attorney. (Code. Civ. Proc. § 128, subd. (a)(5); *Henriksen v. Great American Savings & Loan* (1992) 11 Cal.App.4th 109, 113.)

The court finds Defendant has standing to bring the instant motion. “Protection of the attorney-client privilege is not the *only* ground for a motion to disqualify an attorney. An attorney may be disqualified for a variety of reasons, including the protection of confidential work product of opposing counsel.” (*Meza v. H. Muehlstein & Co., Inc.* (2009) 176 Cal.App.4th 969, 980.) Here, although inartfully stated, Defendant is looking to protect the confidential work product and/or other privileged information, known by or in possession, of his former counsel, who was opposing counsel.

The court also finds that although Plaintiff's counsel has not represented Defendant, there is a substantial relationship between the parties. It is uncontroverted that Plaintiff's counsel has appeared in this matter prior to being employed by Defendant's former counsel; it is uncontroverted that Defendant's former counsel has appeared in this matter prior to hiring Plaintiff's counsel, and it is uncontroverted that Defendant's former counsel employed Plaintiff's counsel during this ongoing litigation. As such, there is a substantial relationship between the parties.

Although counsel argues that no confidential information has been received, “actual possession of confidential information is not required for an order of disqualification.” (*Dill v. Superior Court* (1984) 158 Cal.App.3d 301, 304.) “It is enough to show that there was a ‘substantial relationship’ between [the subjects of] the former and the current representation. If the former client establishes the existence of a substantial relationship between the two representations the court will conclusively presume that the attorney possesses confidential information adverse to the former client and order disqualification.” (*National Grange of Order of Patrons of Husbandry v. California Guild* (2019) 38 Cal.App.5th 706, 714.)

Although analyzed in a former client context, the above reasoning is applicable in this instance due to Plaintiff's counsel being employed by Defendant's former counsel. By virtue of the employment status between Plaintiff's counsel and Defendant's former counsel, which arose during this litigation, the court conclusively presumes Plaintiff's counsel possesses confidential information adverse to Plaintiff.

“The paramount concern must be to preserve public trust in the scrupulous administration of justice and the integrity of the bar. The important right to counsel of one's choice must yield to ethical considerations that affect the fundamental principles of our judicial process.” (*People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1145.)

Accordingly, the motion to disqualify Plaintiff's counsel is granted.

25CV-04382

Ahmadzaki Arjmand, et al. vs Merced County Office of Education

Petition for Relief

The petition for relief from California Government Code section 945.4 is GRANTED.

Petitioners have met their burden to prove by a preponderance of the evidence that the late-claim application under Government Code section 911.2 was made within a reasonable time and that the statutory requirements of Government Code section 946.6 have been met. (*Drummond v. County of Fresno* (1987) 193 Cal.App.3d 1406, 1410.)

The Court finds that the situation presented by Petitioners is precisely that for which section 946.6, “a remedial statute intended to provide relief from technical rules which otherwise provide a trap for the unwary claimants,” applies. (*Ebersol v. Cowan* (1983) 35 Cal.3d 427, 435.) Notably, the preference for trial of issues on their merits applies here, and the Court must resolve any existing doubts in favor of the application. (*Spencer v. Merced County Office of Education* (1997) 59 Cal.App.4th 1429, 1436.)

The Court finds Petitioners’ claims of reasonable mistake or excusable neglect to be reasonable. The declarations accompanying the petition establish a reasonable effort to locate the owner of the vehicle (Merced County Office of Education “MCOE”) and diligent investigation to locate the appropriate agency for the filing of a claim. A timely claim was submitted to Merced County on the mistaken – but reasonable – belief that MCOE is a division of Merced County. (Joseph Decl. ¶¶ 5-7; Petition 3:7-9; Exhibit 1.) Counsel was not dilatory and diligently followed up with Merced County regarding the claim. (Joseph Decl. ¶ 11, 15.) Upon learning that Merced County was not the correct entity for the claim, counsel submitted a request for leave to present a late claim. (Petition 3:16-20.) The late claim was denied on May 23, 2025. (Petition 3:16-22, Exhibit 4.)

Unlike in *Spencer, supra*, where a similar error was made in the filing of the initial claim, Petitioner here was not promptly notified of the correct entity by Merced County. Rather, the County merely indicated that the claim was incorrectly filed and requested the claim be withdrawn. (Exhibit 2.) Furthermore, Petitioners’ attorney here made a diligent investigation into the identity of the correct entity for the initial claim, which continued after notification from Merced County that the claim had been incorrectly filed. Petitioners were on notice that MCOE was the owner of the vehicle, but the mistake lay not in identifying the correct entity, but in identifying where and how to properly file a claim, relying on the incorrect inference that MCOE would be an arm of the County of Merced. These mistakes were reasonable and counsel was diligent at every stage of the claims process.

The Court further finds that MCOE will not suffer prejudice should Petitioners’ request for relief be granted, and MCOE has presented no evidence to the contrary.

Petitioners are to file their complaint within thirty (30) days of this court’s order.

25CV-04511 Yvonne Pinal, et al. vs Robert Tabares Rojas

Order to Show Cause re: Sanctions

Appearance required.

Case Management Conference

Appearance required.

25CV-04539 Maria Hernandez Covarrubias vs Dustin Steele, et al.

Order to Show Cause re: Sanctions

The Court having reviewed the declaration of counsel filed May 20, 2026, finds GOOD CAUSE NOT TO ISSUE SANCTIONS as there was no willful failure to appear at the case management conference on April 13, 2026.

Case Management Conference

CONTINUED to January 25, 2027, at 10:00 a.m. in Courtroom 8, to allow Plaintiff time to serve the summons and complaint and to file an updated case management conference statement with the court.

25CV-04560 Valley Strong Credit Union vs Anthony Marquez

Order to Show Cause re: Sanctions

Appearance required.

Case Management Conference

Appearance required.

25CV-05265 In the Matter of: 832 West 9th Street, Merced, CA 95340

Motion for Order Approving Receiver's Final Report and Accounting

The motion for an order approving the receiver's final report and accounting is GRANTED. The requirements of Rules of Court, rule 3.1184 have been met. The Court approves the final report and accounting and finds the duties of the receivership estate have been fulfilled and concluded.

The Court will sign the order lodged on April 29, 2026.

26CV-01635

Evelia Aguilar Farias vs Pacific Sunrise Associates, Inc., et al.

Order to Show Cause Re: Preliminary Injunction

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Wednesday, May 27, 2026
10:00 a.m.

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Case No.	Title / Description
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23CV-03500	Spring Oaks Capital SPV LLC vs. Carmen Penaloza
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Order Show Cause re: Dismissal - Notice of Settlement

On November 7, 2023, Plaintiff filed a Notice of Settlement indicating conditional settlement and that a request for dismissal would be filed no later than February 22, 2026. No request for dismissal has been filed. If no party appears to request more time to complete the settlement, the Court will dismiss the action pursuant to rule 3.1385(c)(2) of the California Rule of Court.

25CV-01098	Gonzalo Villasenor vs. Loretta Ortiz Aguilar
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Review Hearing – Status of Default

Appearance required. Appear to address status of request for entry of default and default judgment.

26CV-02160

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil Trials
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Wednesday, May 27, 2026
1:30 p.m.

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Case No.	Title / Description
24CV-01598	Discover Bank vs. Brandon Velazquez
Court Trial	
Appearance required.	
24CV-02397	Velocity Investments LLC vs. Esmeralda Soto
Court Trial	
Appearance required.	
25CV-01148	Midland Credit Management, Inc. vs. Gabriela Morfin
Court Trial	
Appearance required.	

25CV-01756

Oportun, Inc vs. Susana Chavez

Court Trial

Appearance required.
